In Madras, the infamous ‘Communal Government Order’ granting community-based reservations in educational institutions and stringently limiting the number of upper-caste students had been struck down by the Madras High Court, which pointedly observed that Article 15(1) preventing discrimination on caste, communal, racial and linguistic grounds would become an empty bubble if such orders were held to be legal and constitutional.[26] The decision was upheld by the Supreme Court, which then went on to also strike down communal reservations in government jobs.[27] A storm of protest had erupted, with the Madras government demanding a constitutional amendment.

Over the course of 1950 and 1951, Nehru had frequently given vent to his frustration over the judiciary and the Constitution undermining his plans and his policies. He was unable to censor or suppress critical voices, especially the scathing criticism of his policy towards Pakistan mounted by figures like Mookerjee, supported and encouraged by right-leaning commentariat and sections of public opinion in Bengal.[28] There had also been frequent outbursts against the press, which stood accused of spreading malicious falsehoods and propaganda against his government and undermining the morale of the nation by spreading fake news. Through the year he had frequently inveighed against the law and the Constitution holding up his plans for zamindari abolition and land reform – something that also represented a political problem in light of the looming general election.

The actual stalling of zamindari abolition and land reform then, albeit temporary, and the prospect of going into the inaugural general election without having delivered the most key plank of Congress policy shook the government. It resulted in a furious Prime Minister declaring: ‘if the Constitution is interpreted by the courts in a way which comes in the way of the wishes of the legislature in regard to basic social matters, then it is for the legislatures to consider how to amend the Constitution so that the will of the people as represented in the legislature should prevail.’[29] For Nehru, and others who shared his vision, these judicial defeats represented a defeat